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UNFOUNDED

WILL THE POLICE BELIEVE YOU?

A 20-month investigation by The Globe and Mail reveals that sexual-assault victims are more likely to be believed in some areas of the country than in others

BY ROBYN DOOLITTLE, MICHAEL PEREIRA, LAURA BLENKINSOP AND JEREMY AGIUS

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In Canada, police dismiss 1 out of every 5 sexual-assault reports as unfounded – meaning police believe the crime didn't happen

When Canadian police officers complete an investigation, they give it a closure code to show the outcome. One of those codes is “unfounded.” “Unfounded” indicates the investigating officer does not believe a crime was attempted or occurred. Once an allegation is categorized that way, it effectively disappears from public record. Considered baseless, the case isn’t reported to Statistics Canada, which has implications for police and

victim-services funding.

The Globe sent nearly 250 freedom of information requests to 178 police services to obtain confidential unfounded data from 1,119 police jurisdictions across the country. We received responses from 873 jurisdictions, which represent 92 per cent of the Canadian population.

THE UNFOUNDED SEXUAL- ASSAULT RATE IN CANADA FROM 2010 TO 2014*

19%

THAT MEANS **27,740** OF **143,053** ALLEGATIONS HAVE BEEN TRIAGED OUT
OF THE JUSTICE SYSTEM

*see methodology for explanation of 5-year rate.

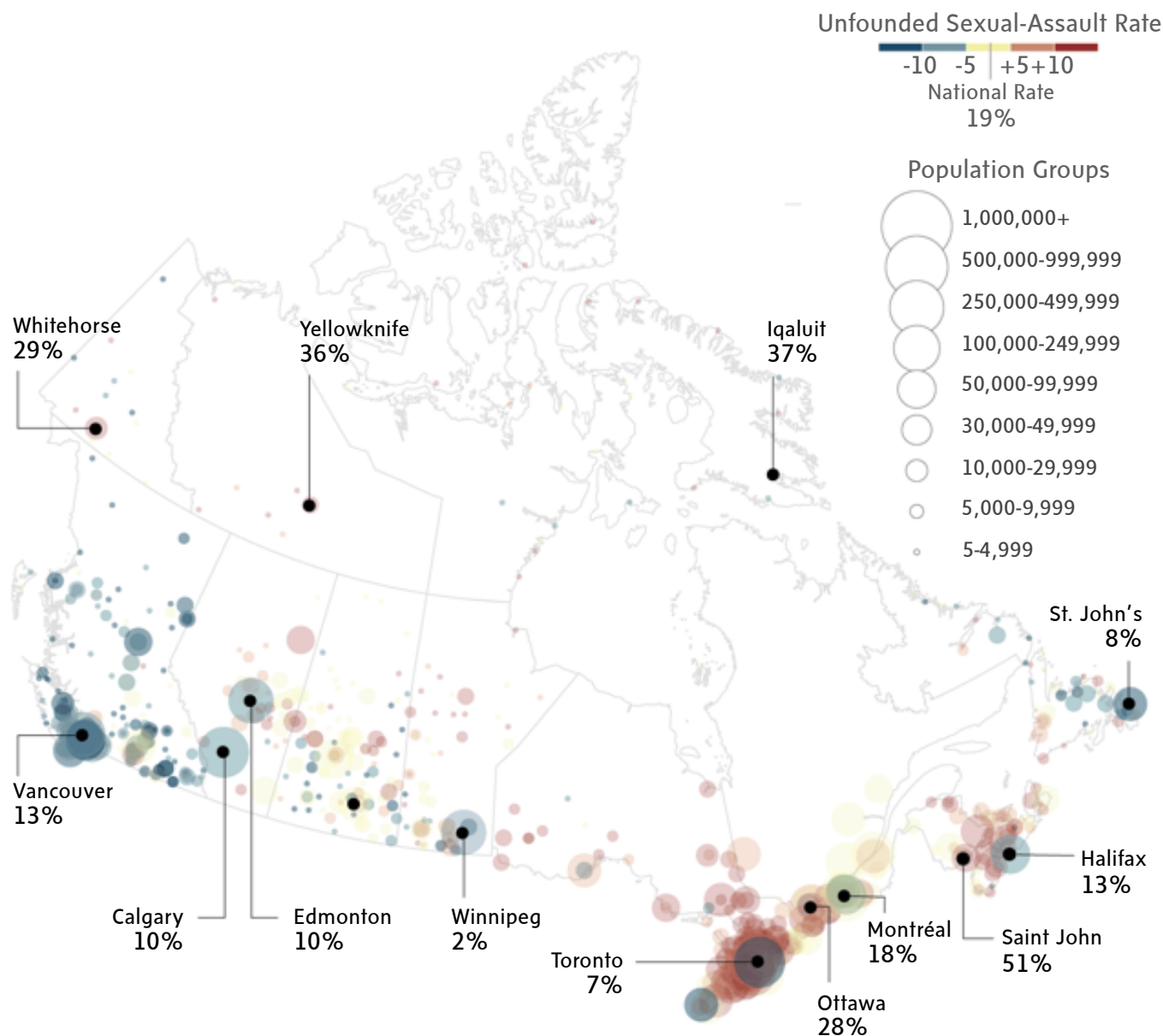
Our investigation has shown that sexual-assault cases are nearly twice as likely as physical assault to be designated unfounded. (The Globe found that only 11 per cent of physical assaults were coded as unfounded.) The number is also significantly higher than the false-reporting rate, which studies have shown to be somewhere between 2 and 8 per cent.

And while, on average, 1 in 5 sexual-assault allegations is deemed unfounded, The Globe found that the statistics varied wildly from town to town, city to city and province to province. Even separate police services located in the same geographic area recorded starkly different unfounded rates. In total, police in 115 communities dismissed at least

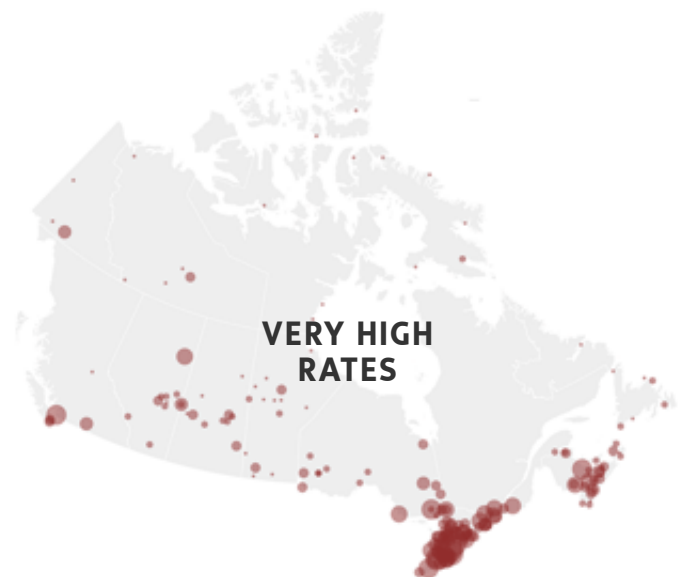
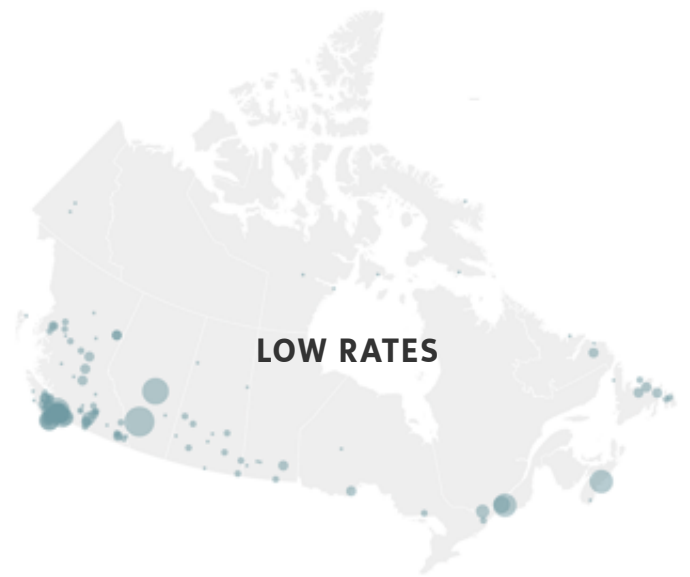
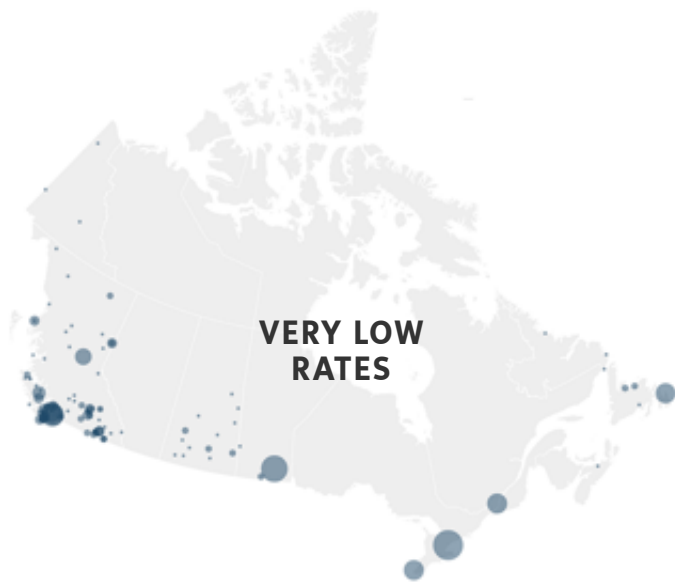
one-third of sex-assault complaints as unfounded.

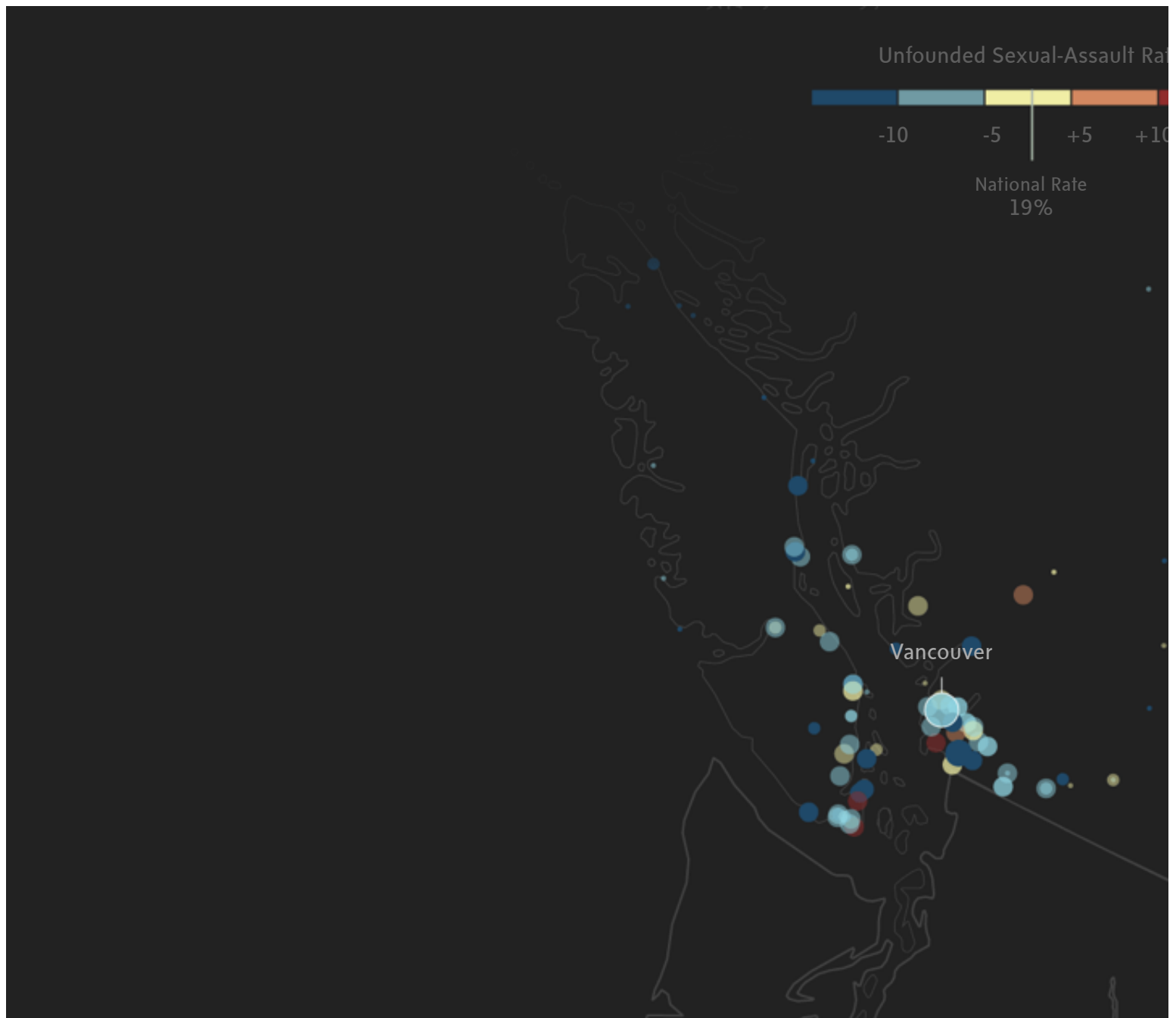
Experts say these high figures and large variations are evidence of a broken system.

A national snapshot



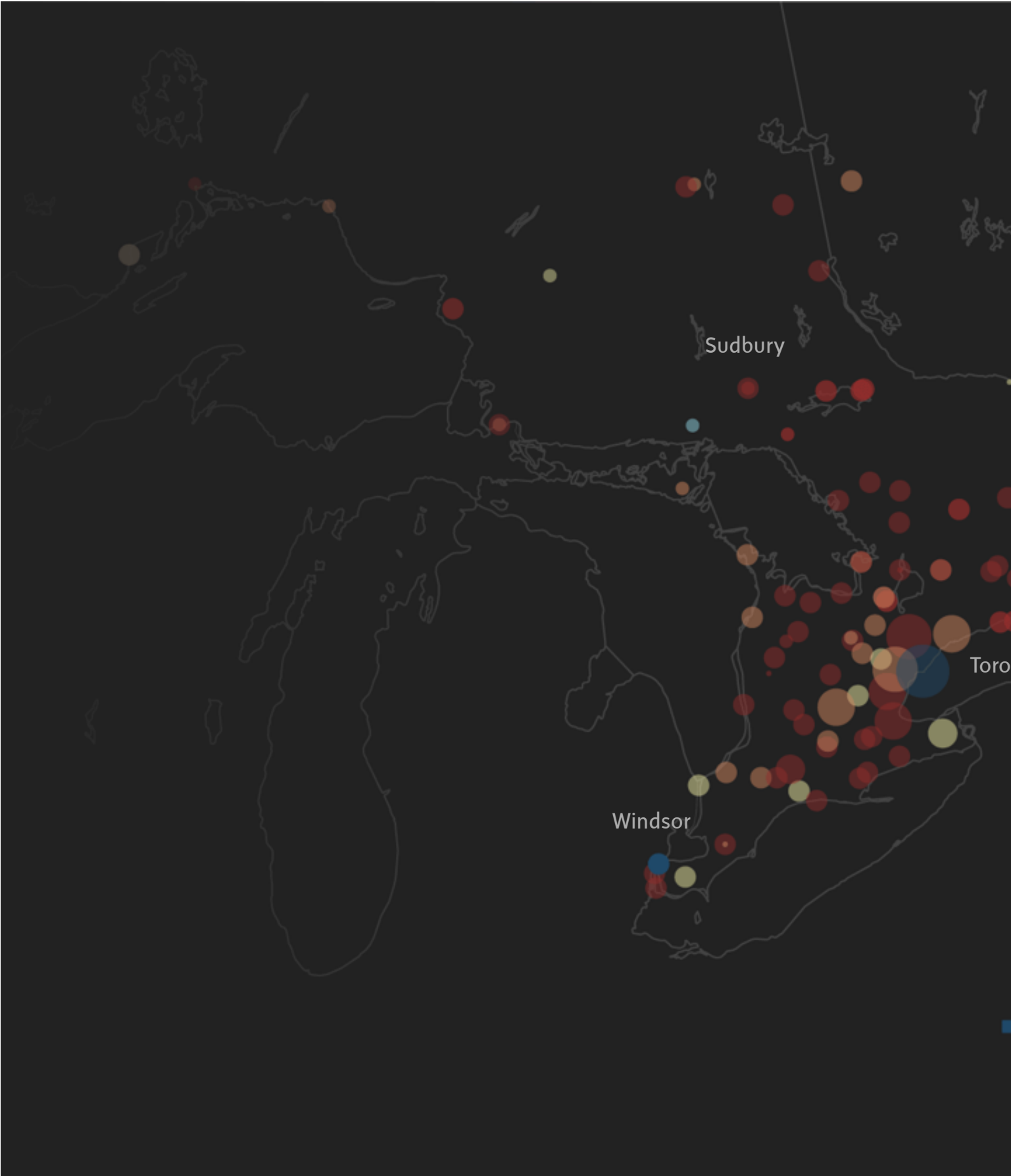
In general, larger cities tended to have lower unfounded rates. Winnipeg (2%), Toronto (7%), Edmonton (10%), Calgary (10%), Vancouver (13%) and Montréal (18%) were below the national rate. In addition, western police services, particularly British Columbia, tended to have lower unfounded statistics.





There are a few unique factors at play in British Columbia. For one, the most in-depth review of police unfounded files looked at 2002-2003 files from four B.C. police services, so experts say it's possible the increased scrutiny has had an impact elsewhere. For another, B.C. is one of only a few Canadian jurisdictions where the Crown, not the police, decides whether to lay charges.

In addition, B.C. has the highest legal test to bring a case to court. The Crown needs to show a “substantial likelihood of conviction,” rather than a “reasonable likelihood” or “reasonable prospect” of conviction, which is the standard elsewhere in the country. This higher bar could mean police officers are more careful with how they treat cases, experts told The Globe.

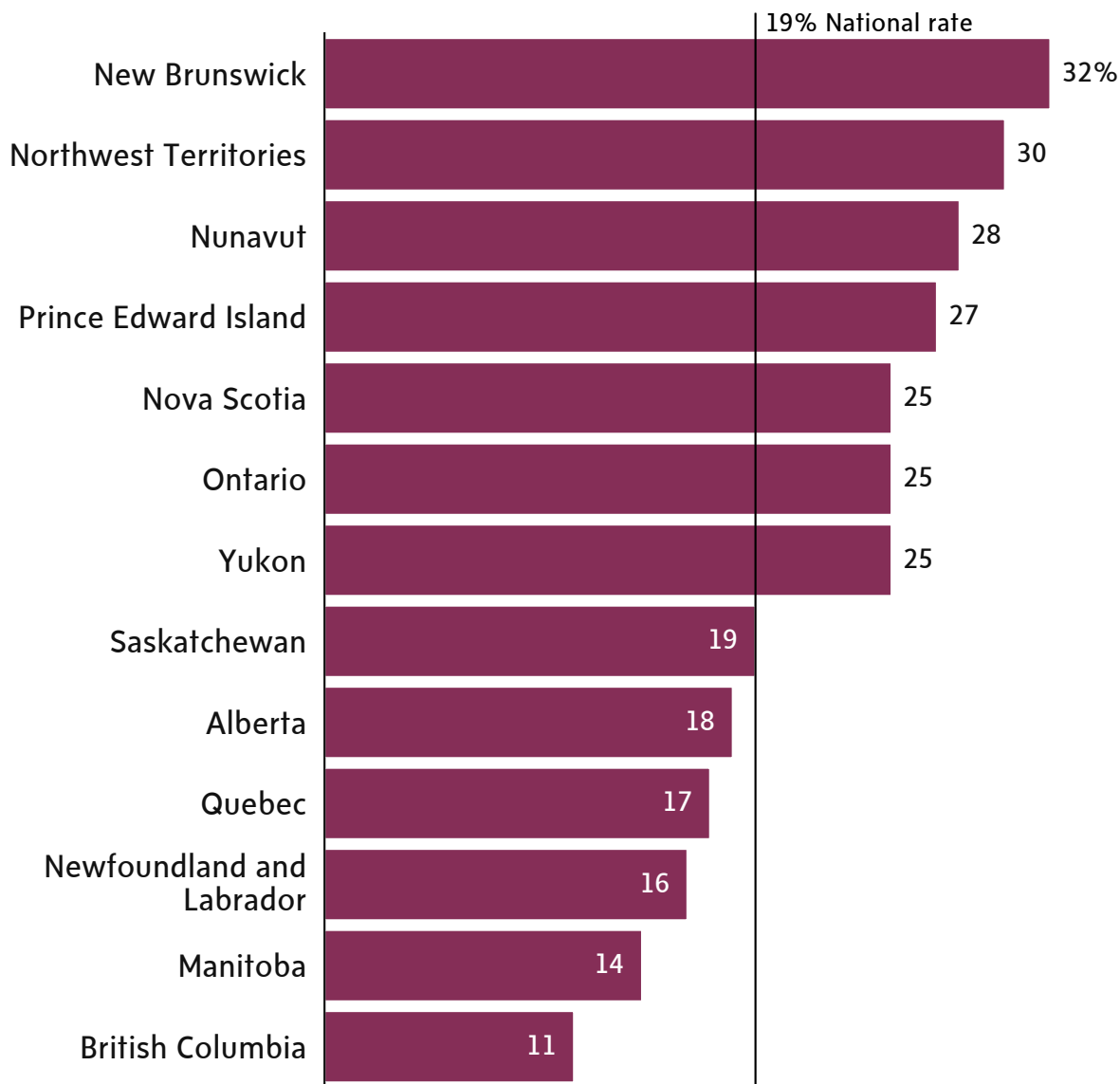


By province and territory

Although there were examples of both high and low sexual-assault unfounded rates in nearly every region of the country, on average, Canada's smallest regions – located in the North and the Maritime provinces – typically had the highest unfounded rates among the provinces and territories. Just as unfounded rates fluctuated significantly between jurisdictions, the range among Canada's provinces was equally dramatic, from 11 per cent to 32 per cent.

Unfounded sexual-assault rate by province and territory

Percentage of sexual-assault allegations cleared as unfounded (2010-2014)



THE GLOBE AND MAIL

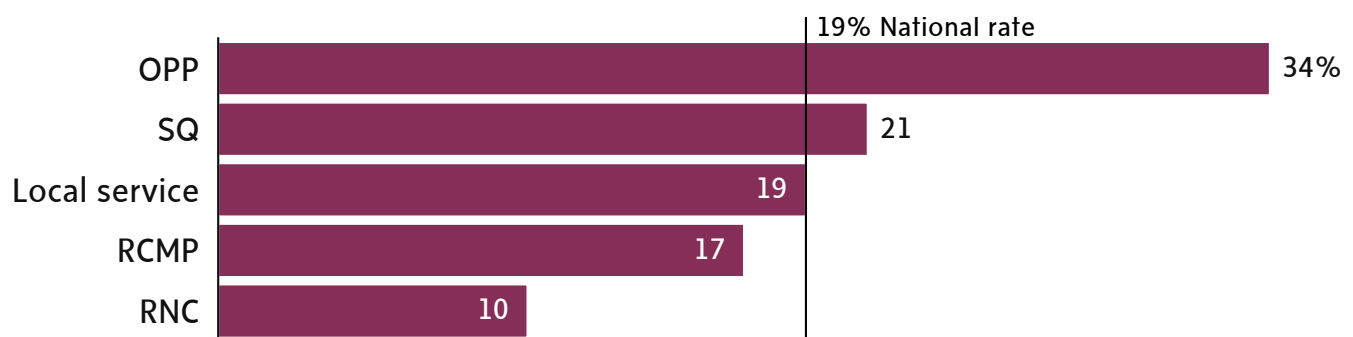
The national rate covers 89 per cent of Canada's population. The percentage of the population covered in each province is as follows. N.B. 95%, N.W.T 100%, Nunavut 100%, P.E.I 73%, N.S. 99%, Ont. 99%, Yukon 100%, Sask. 97%, Alta. 66%, Que. 73%, Nfld. 100%, Man. 82%, B.C. 100%.

Police services

Just as there were wide differences between the country's provinces and territories, unfounded rates ranged significantly among Canada's police services. The Globe received data from 125 independent municipal services. Three provinces have their own provincial force, the Sûreté du Québec, The Royal Newfoundland Constabulary and the Ontario Provincial Police. In addition, the Royal Canadian Mounted Police are responsible for rural and urban communities across the country.

Unfounded sexual-assault rate by police service

Percentage of sexual-assault allegations cleared as unfounded (2010-2014)



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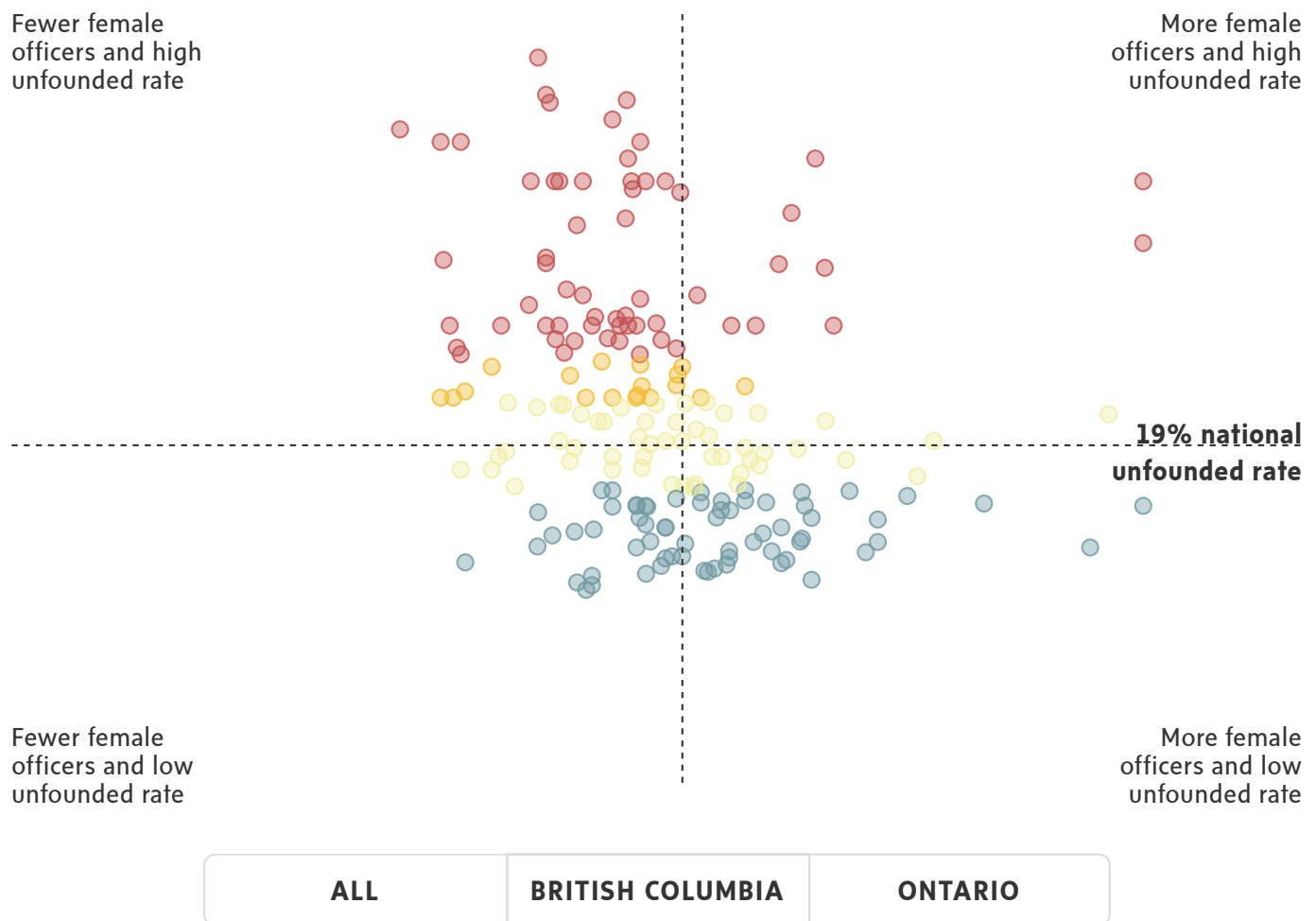


The correlation between more female officers and lower unfounded rates

Using 2014 data from Statistics Canada's Police Administration Survey, The Globe compared municipal police jurisdictions' 2014 sexual-assault unfounded rates with the percentage of female officers on staff. The results show a correlation between having an above-average percentage of female officers and lower-than-average unfounded numbers. The unfounded rate among communities with a higher-than-average percentage of female officers was 15 per cent.

2014 sexual-assault unfounded rate compared to rate of female officers

21% average rate of female officers



The administration survey has data on female officer staffing for 458 municipalities. However, we could only use data from 234 of them. [See methodology for explanation.](#)

In B.C., 59 per cent of communities had above-average female officer rates – another possible reason B.C. posted lower overall averages.

In Ontario, 83 per cent of communities had fewer female officers than average.

The highest and lowest rates across

the country

HIGHEST RATES

Central Saanich, B.C.

60

1

15 OF 25 ALLEGATIONS
POLICED POPULATION: 16,562

LaSalle, Ont.

59

2

30 OF 51 ALLEGATIONS
POLICED POPULATION: 29,501

Bracebridge, Ont.

56

3

87 OF 154 ALLEGATIONS
POLICED POPULATION: 37,022

Truro, N.S.

55

4

53 OF 96 ALLEGATIONS
POLICED POPULATION: 12,225

Huntsville, Ont.

55

5

66 OF 121 ALLEGATIONS
POLICED POPULATION: 23,832

LOWEST RATES

Winnipeg, Man.

2

66 OF 3483 ALLEGATIONS
POLICED POPULATION: 709,171

Windsor, Ont.

3

32 OF 939 ALLEGATIONS
POLICED POPULATION: 218,806

Nanaimo, rural, B.C.

4

4 OF 114 ALLEGATIONS
POLICED POPULATION: 14,182

Boundary/Grand Forks, B.C.

5

3 OF 64 ALLEGATIONS
POLICED POPULATION: 8,546

Sidney, municipal, B.C.

5

4 OF 81 ALLEGATIONS
POLICED POPULATION: 11,681

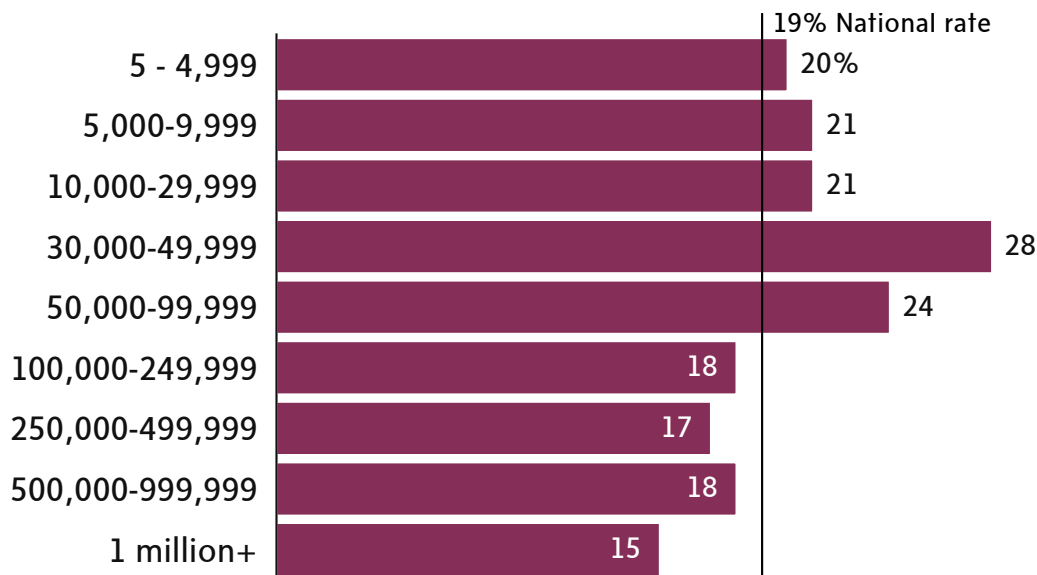
Ranking excludes communities that make up the lowest five per cent of Canada's population

Findings by population size

Canadian communities with fewer than 100,000 residents tended to have higher-than-average unfounded rates. Beyond that, the larger the city, the lower the numbers. Experts have speculated that this could be because smaller jurisdictions have fewer resources, such as a dedicated specialized sex-assault unit, and that these areas may also have less media scrutiny.

Unfounded sexual-assault rate by population size

Percentage of sexual-assault allegations cleared as unfounded (2010-2014)



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The percentage of Canada's population covered in each population group is as follows, listed in the same order as in the chart above, starting at the top: 2%, 5%, 10%, 5%, 11%, 13%, 15%, 18%, 21%

Communities listed by national five-year unfounded rate

Percentage of sexual-assault allegations cleared as unfounded (2010-2014). The list below includes all communities that have sexual-assault unfounded data across all five years

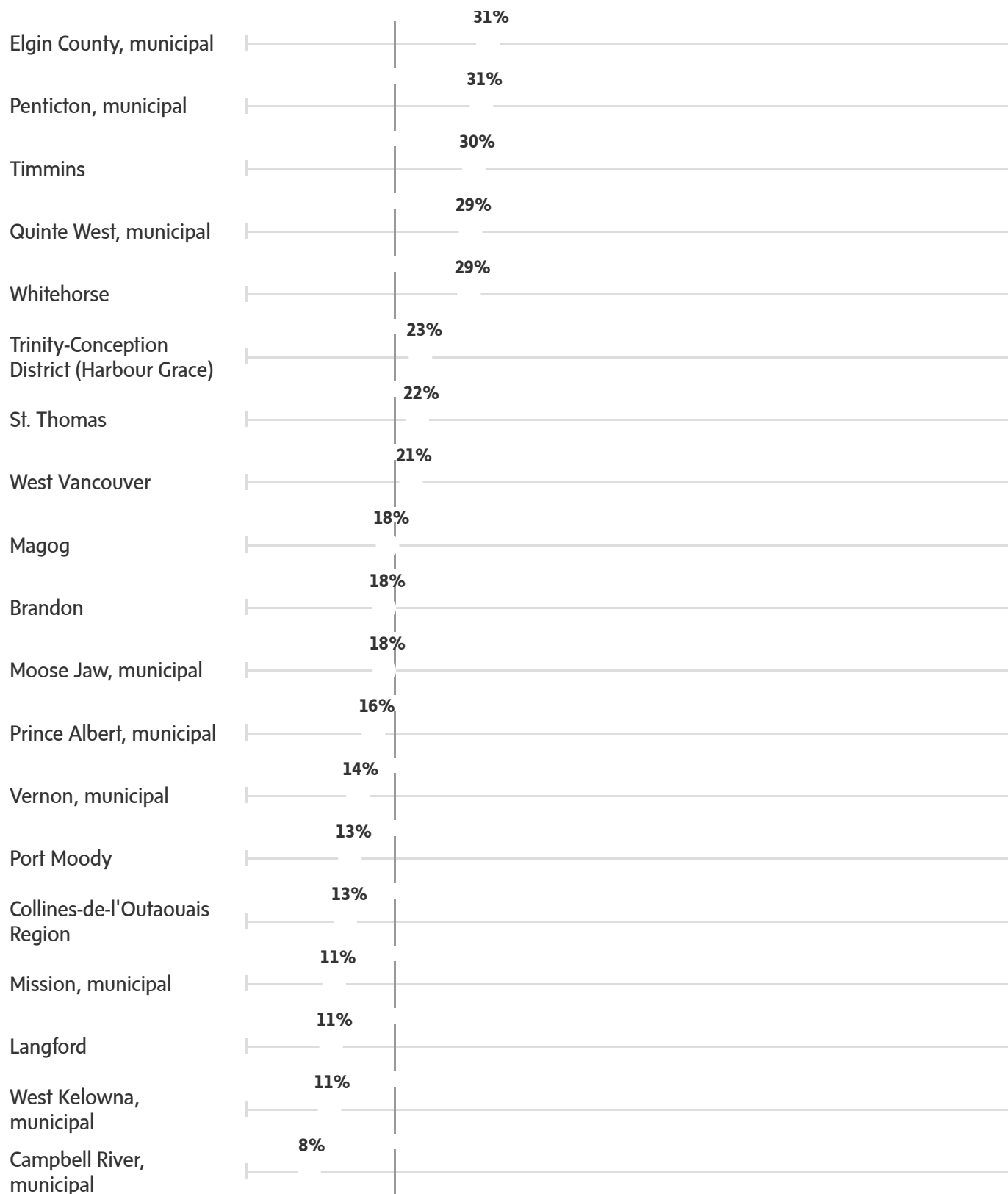
FILTER BY POPULATION

30,000 - 49,999



DESCENDING







What's the unfounded rate where you live?

Curious what the unfounded rate is in your hometown? Enter your community name or police service in the field above. You'll also find information about your jurisdiction's sexual-assault charge rate and assault unfounded rate.



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Methodology: Inside the data behind The Globe's Unfounded series

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